

25CHCV04157 25CHCV04157

County: los-angeles

Division: Civil Law and Motion

Department: F49

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Case Number: 25CHCV04157 Hearing Date: September 1, 2026 Dept: F49

Dept. F49

Date: 9/1/26

Case Name: Nancy Dunigan vs. County of Los Angeles;

City of Los Angeles; L.A. Dept. of Animal Care & Control; West Valley

Animal Shelter; and Does 1-100

Case No. 25CHCV04157

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 1, 2026

MOTION TO STRIKE

Los Angeles Superior

Court Case No. 25CHCV04157

Motion filed: 4/7/26

MOVING PARTY: Defendant City of Los Angeles, joined
by Defendant County of Los Angeles

RESPONDING PARTY: Plaintiff Nancy Dunigan

NOTICE: OK

RELIEF REQUESTED: An order from this Court striking portions of Plaintiffs' Complaint relating to punitive and exemplary damages.

TENTATIVE RULING: The Motion to Strike is GRANTED.

I.

BACKGROUND

This premises liability action arises from injuries allegedly sustained by Plaintiff Nancy Dunigan ("Plaintiff") when she tripped and fell over an animal cage on a pedestrian walkway at the West Valley Animal Shelter (the "Shelter"). On November 21, 2025, Plaintiff filed the Complaint against County of Los Angeles (the "County"), City of Los Angeles (the "City"), L.A. Dept. of Animal Care & Control, the Shelter (collectively, "Defendants"), and Does 1 through 100, alleging the following causes of action: (1) liability for dangerous condition of public property, and (2) vicarious liability for the wrongful acts or omissions by public entity employees and/or retention of unfit employee.

On April 7, 2026, the City filed the instant Motion to Strike (the "Motion"). On June 15, 2026, the County joined in the Motion.

On June 20, 2026, Plaintiff filed an Opposition.

On April 24, 2026, Defendant filed a Reply.

II.

ANALYSIS

Upon motion by a party, a court may "strike any irrelevant, false, or improper matter inserted in any pleading ... [or] all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc.,

§ 436, subds. (a), (b).) A motion to strike may be directed against a whole pleading or any part of it. (§ 435, subd. (b)(1).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (§ 437.)

Irrelevant matter includes a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).)

“In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

A. Meet and Confer

Before filing a motion to strike, “the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a).) “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Id., § 435.5, subd. (a)(4).)

The City’s attorney, Michael J. Zuckerman, attests to meeting and conferring with Plaintiff via telephone on February 8, 2026, regarding the punitive damages allegations in the Complaint. (Zuckerman Decl., ¶ 2.) Following that conversation, Plaintiff agreed to the strike the punitive damages request and the parties discussed executing a stipulation. (Id., ¶ 3.) The stipulation was never executed, and this Motion followed. (Ibid.)

The Court finds that the foregoing effort satisfies the meet and confer requirement of Code of Civil Procedure section 435.5, subdivision (a).

B. Motion to Strike

The City seeks to

strike allegations of punitive damages from the Complaint, contending that they are prohibited by Government Code section 818. (Mot., at p. 4.) Pursuant to Government Code section 818, “[n]otwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.”

Plaintiff does

not dispute that this provision immunizes public entities from punitive or exemplary damages and that it applies in the present circumstances. (Opp’n, at p. 1.) Plaintiff does not oppose striking the punitive damages request. (Ibid.)

The Court accordingly GRANTS the Motion. Paragraph 14a(2) and the Exemplary Damages Attachment, Judicial Council Form PLD-PI-001(6), are stricken as to the City.

C. The County’s Joinder

The County joins

in the motion “on the grounds that the motion is fully applicable to the County’s position in this litigation,” incorporating by reference all of the City’s arguments, authority, and evidence. (Joinder, at p. 2.) The Court agrees that the County is similarly situated to the City with respect to the punitive damages claim. It is likewise a public entity to which Government Code section 818 applies to shield it from liability for punitive damages. However, the County does not affirmatively request any relief as to itself. The Joinder is therefore ineffective for the Court to afford relief to the County.

CONCLUSION

Consistent with the foregoing

ruling, the Court GRANTS Defendant City of Los Angeles’ Motion to Strike, without leave to amend.

Moving party to give notice.